



DAY ZERO ENERGY

EXECUTIVE INTELLIGENCE FOR ENERGY LEADERS

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Nigeria · Decommissioning & Abandonment · HSE Safety Intelligence

ROAD TO SEPTEMBER 9 · EDITION 8

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The Other Clock

*September 9 is the loudest clock in the room.
It has never been the only one.*

ONE DATE. FIVE CLOCKS. COUNT AGAIN.

EXECUTIVE SNAPSHOT

Seven editions of this series have pointed at one date. This edition is about the clocks behind it. The Regulations run more than one: a twelve-month application clock for onshore work that nobody has mentioned, suspension clocks that keep running whether or not a plan is filed, a contribution clock that starts the moment an estimate is approved, and a reporting rhythm that never stops. September 9 is the loudest clock in the room. Operators who treat it as the only one will be compliant for a day and exposed for a decade.

INTELLIGENCE BRIEF

Start with the clock nobody has mentioned.

Regulation 5(12) requires an application for onshore decommissioning at least twelve months before the proposed commencement of the work. Read that against your own schedule. If any onshore decommissioning is planned to commence within the next twelve months, the application window is not approaching. It is open now, or already closed behind you. The September 9 submission does not satisfy it. It is a separate obligation, on a separate clock, with its own consequences for silence.

The suspension clocks are still running too. Edition 5 set them out in full, so one paragraph will do here. Regulation 5(9)(a) bars a shut-in for operational reasons beyond one year without express approval. Regulation 5(9)(b) caps the suspension period and permits extension only on justification. And Regulation 5(10) closes the loop: where the operator fails to apply or the extension is declined, abandonment must be completed within one month of expiry, failing which the Commission accesses the Decommissioning and Abandonment Fund and engages a third party. A filed plan does not pause any of this.

Then the money clocks. Regulation 20 derives the yearly contribution to the Fund from the cost estimate. The day an estimate is approved, an annuity begins. That is not a filing event. It is a permanent line in the budget, repricing as the estimate reprices. And Regulation 15(1)(b)(iii) requires licensees to report actual cost incurred as decommissioning proceeds. Sit with what that builds. Year on year, the Commission accumulates real outturn costs against the estimates it

approved. Every estimate filed on September 9 will eventually be checked against reality, by the regulator, with the operator's own numbers.

Five clocks. One is famous. Four are running quietly.

WHAT THE REGULATIONS REQUIRE

- 1. **Regulation 5(12), the onshore clock.** Application for onshore decommissioning at least twelve months before proposed commencement. A separate obligation from the September 9 submission, with its own window.
- 2. **Regulations 5(9) and 5(10), the suspension clocks.** One-year bar on operational shut-ins without express approval. Capped suspension, extension on justification only. One month after expiry, the Commission accesses the Fund and engages a contractor of its own choosing.
- 3. **Regulation 20 with Regulation 15(1)(b)(iii), the money clocks.** Annual contribution derived from the approved cost estimate, and actual cost incurred reported as the work proceeds.

THE BOARDROOM QUESTION

Which of the five clocks in these Regulations are running against our assets today, and who in this company owns each one by name?

EXECUTIVE DASHBOARD

Indicator	Position
Submission clock (Reg 23, 9 September)	15 days
Onshore application clock (Reg 5(12), 12 months before commencement)	
Suspension approvals current (Reg 5(9))	
Post-expiry exposure assessed (Reg 5(10))	
Annual contribution booked from the estimate (Reg 20)	
Actual-cost capture ready (Reg 15(1)(b)(iii))	

WHERE THE CLOCKS ARE MISSED

- The single-date assumption.** The company calendar carries September 9 and nothing else. Four other clocks run unwatched.
- The onshore blind spot.** Commencement is pencilled for next year, and nobody has computed that the Regulation 5(12) window is already open. Twelve months is not a comfortable margin. It is the minimum.
- The suspension drift.** Wells shut in as temporary measures, with no approval trail against the one-year bar in Regulation 5(9)(a). Temporary is a word the Regulations do not recognise without paperwork.
- The contribution surprise.** The cost estimate is approved, the plan is celebrated, and the finance function discovers Regulation 20 at budget season. The estimate was never just a filing figure. It was the seed of an annual payment.

The reporting vacuum. Work begins, invoices land, and no system exists to capture actual cost incurred in the form Regulation 15(1)(b)(iii) will demand. The gap between estimate and outturn becomes a conversation with the Commission, held on the Commission's terms.

STRATEGIC IMPLICATION

The deadline mindset ends on September 9. The regime mindset begins the next morning. A company staffed for a filing sprint is not yet a company staffed for a clock-tower, and the Regulations built a clock-tower. The practical move is ownership. Every clock named in this edition needs one accountable owner, in writing, before the submission goes in. Not a committee. A name. Because Regulation 5(10) already tells you what happens when a clock expires without an owner: the operator's own contributions pay a contractor the operator did not choose.

THIS WEEK

List every asset with planned or plausible onshore decommissioning in the next twenty-four months. Check each against the Regulation 5(12) twelve-month window.

Pull the suspension approvals file. Match every shut-in well against the one-year bar in Regulation 5(9)(a).

Put a name against each of the five clocks. One owner per clock, recorded in the board pack.

REGULATION WATCH

Regulation 18 obliges the Commission to maintain a database of installations, structures and pipelines and to publish it on its website annually. It has not yet appeared. When it does, every operator's inventory position becomes publicly checkable. Separately, the accreditation criteria under section 86(b) of the Nigeria Tax Act 2025, covered in Edition 6, remain unissued. Both are worth a standing diary note.

DAY ZERO INSIGHT

A deadline is a date. A regime is a rhythm.

The Regulations did not set one clock. They set a tower of them.

Name an owner for every clock, or the Commission will name a contractor.

EXECUTIVE CHECKLIST

- Onshore commencement dates mapped against the Regulation 5(12) twelve-month window.
- Suspension approval status confirmed for every shut-in well.
- Post-expiry exposure under Regulation 5(10) assessed and minuted.
- Annual contribution under Regulation 20 booked into the forward budget.
- Actual-cost capture process designed before work begins.
- One named owner per clock, recorded before September 9.

LOOKING AHEAD

Edition Nine assembles the filing itself. Not what the template asks for. What the Regulations define as complete, provision by provision, eight days out.